

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

JOINT MOTION TO EXTEND BRIEFING SCHEDULE

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-BUTTERFLY-1, Inc., formerly known as Bed Bath & Beyond, Inc. ("Complainant" or "BBBY"), and Respondent BAL Container Line Co., Limited ("BAL" and, collectively with BBBY, the "Parties"), by and through their undersigned counsel, hereby jointly submit this Joint Motion to Extend Briefing Schedule ("Motion") respectfully requesting an extension of the schedule set forth in the Presiding Officer's Third Revised Scheduling Order, as detailed herein..

I. THE CURRENT SCHEDULE

On September 19, 2025, the Presiding Officer entered the Third Revised Scheduling Order, which includes deadlines affecting this Motion as follows:

September 30, 2025	Respondent provides documents identified in Order on Complainant's Motion to Compel.
October 30, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admissions, and RFPs.
November 10, 2025	Disclosure of initial expert reports, if any.
December 1, 2025	Disclosure of rebuttal expert reports, if any.

December 15, 2025	Complete expert depositions. Close of all discovery.
January 6, 2026	Complainant's initial brief, proposed findings of fact, and appendix.
February 4, 2026	Respondent's opposition brief, proposed finding of fact, and appendix.
February 19, 2026	Complainant's reply brief and responses to Respondent's proposed findings of fact.

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

1. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein.

2. As detailed in BBY's Second Motion to Compel, discovery has progressed in this case in phases. BBY has made four productions of documents to BAL. The first was on July 9, 2025 and contained 434 documents (6,534 images, 22 native files, and 434 text files for a total size of 2.78 GB). The second was made on July 10, 2025 and contained 465 documents (465 images, 0 native files, and 465 text files for total size of 0.01 GB), and the final production was made on July 15, 2025 and contained 2,048 documents (9,601 images, 605 native files, and 2,048 text files for total size of 1.59 GB). The final production from BBY was made on August 7, 2025 and contained 517 documents (5,963 images, 66 native files, and 517 text files for total size of 1.67 GB).

3. Prior to the entry of the Third Revised Scheduling Order, BAL made two productions, the first on July 17, 2025 containing one document and then the second on August

17, 2025 containing 654 documents, totaling 156.17 MB in size. On September 18, 2025, BAL made a production of 2,873 documents (59,273 images, 1,697 native files, and 2,873 text files for total size of 8.86 GB) and on September 22, 2025 BAL made an additional production of 3,044 documents, (27,046 images, 75 native files, and 3,044 text files for total size of 11.9 GB), which BBY proceeded to upload and review in earnest. BAL represented that the two prior productions included all hit documents responsive to the agreed-upon search terms, with the exception of those being manually reviewed for privilege or withheld for containing terms deemed irrelevant to this case. The Parties then held a meet and confer to discuss scheduling of depositions on September 25, 2025, after discussions via email. At this meeting, counsel to BAL informed BBY's counsel that the prior two productions would need to be replaced, as the families of each document were being produced. BBY's counsel requested time to review the new production, including understanding if BBY's prior review coding could be easily cross-referenced/transposed to reproduced documents, prior to confirming a deposition schedule.

4. On September 26, 2025, BAL made a production of 25,450 documents (144,082 images, 7,652 native files, and 25,450 text files, for total size of 36.7 GB) intended to replace the prior two productions with their full families, as contemplated by the unsigned ESI protocol exchanged in this case. The production was made 4-days prior to the deadline for doing so, which was on September 30, 2025. Since that production was made, BBY has been proceeding with all speed to reconcile its review of the prior productions, and to proceed to review BAL's additionally-produced documents. BAL also provided a final small production of 56 non-privileged documents (696 images, 0 native files, and 56 text files for total size of 509 MB) and a privilege log on September 30, 2025 to complete its document production on the current schedule, which is still under review.

5. In addition to the foregoing sizeable productions, the Parties have exchanged potential witness lists and met and conferred to discuss such depositions and possible schedules in order to work to meet the discovery deadlines within the Third Revised Scheduling Order. That said, the timing and volume of document productions has made it such that BBY is not able to definitively finalize the list of such persons to depose without adequate ability to review BAL's productions.

6. Further, as BBY's counsel has notified BAL, BBY is a post-bankrupt entity and all witnesses sought by BAL are former BBY employees, requiring time off work from other employers, potentially a subpoena to ensure such time off, and adequate time to ensure scheduling. BAL witnesses are also located in mainland China and require time and logistics setup to attend remote depositions in Hong Kong.

7. Both parties are also in the process of conducting third-party discovery and require time to proceed to review and then depose witnesses for third parties in this case, as applicable. The parties have received documents from Yusen Logistics, which are under review, and have been notified that E*DRAY will also make a small production. BBY has also sought additional discovery and served subpoenas on six additional third-parties and is in various stages of confirming receipt of the subpoena and corresponding regarding document production and collection.

8. Based on the timing of productions and requests for deponents, including the significant number of documents produced and the number of deponents at issue, as well as the need to complete third-party discovery, the current schedule does not currently allow for adequate time for the parties to conduct the necessary meaningful review of such documents and to schedule

witness depositions ahead of the October 30, 2025 deadline set forth in the Third Revised Scheduling Order.

9. The parties respectfully request additional days (with additional adjustments for holidays and adequate expert discovery) be added to the deadlines in this case to allow for sufficient time for BBY to review documents and adequately prepare witnesses ahead of taking and defending depositions.

10. In addition, under the Third Revised Scheduling Order, BBY must file its initial brief by January 6, 2026. Thereafter, BAL must draft and file its opposition brief by February 4, 2026. In addition to the reasons above, Counsel for BAL respectfully requests (and BBY does not object to) an adjustment of this briefing schedule to accommodate BAL **counsel's pre-planned vacation, to celebrate a milestone birthday, from January 14, 2026 through January 20, 2026.** Counsel for BAL would like the opportunity to attend this trip and spend time with his family. However, because it occurs during the period in which BAL must draft its opposition brief, counsel for BAL doubts he will be able to attend should the current briefing schedule remain. The new proposed schedule below would allow for counsel for BAL to attend his family vacation with minimal disruption.

11. The Parties have discussed this matter and agree that an extension of the schedule, **including additional time to accommodate winter holidays, pre-planned vacations, and conduct expert discovery**, is reasonable to allow for all parties to have adequate time for document review, preparation of witnesses, scheduling and taking depositions, and to provide counsel for BAL the opportunity to attend his vacation. Pursuant to 46 C.F.R. Section 502.71, the Parties have met and conferred regarding this Motion. The Parties agree that an extension of the briefing schedule is reasonable given the circumstances.

12. Counsel for the Parties agree that, under the circumstances, this Joint Motion to Extend Briefing Schedule is warranted for good cause and that extreme prejudice to both Parties would result if an extension of time to complete discovery is not granted to permit the parties to complete discovery and adequately prepare for depositions and expert reports in a proceeding involving allegations of \$9.5 million in reparations.

13. Given the scope and complexity of the claims and defenses, and the challenges posed by the large number of non-party documents and depositions, the Parties believe it would be most effective, efficient and preserve the Parties' due process rights by allowing the Parties to move forward with this case on the following proposed revised schedule:

December 15, 2025 Complete depositions of fact witnesses. Last day to serve
(47 days) interrogatories, requests for admissions, and RFPs.

January 20, 2025 Disclosure of initial expert reports, if any.
(71 days)

February 10, 2025 Disclosure of rebuttal expert reports, if any.
(71 days)

February 24, 2025 Complete expert depositions. Close of all discovery.
(71 days)

March 24, 2026 Complainant's initial brief, proposed findings of fact, and appendix.
(77 days)

April 21, 2026 Respondent's opposition brief, proposed finding of fact, and appendix.
(76 days)

May 5, 2026 Complainant's reply brief and responses to Respondent's proposed
(75 days) findings of fact.

14. In making this joint Motion, the Parties here have limited their request to the smallest amount of time in which they presently believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes. Further, the Parties believe that the foregoing is a realistic period to review the large volumes of material yet to be produced by the non-party witnesses, negotiate further stipulations of fact, where appropriate, and conduct depositions and expert discovery.

15. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

16. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

17. WHEREFORE, the Parties pray that their Joint Motion for Amended Briefing Schedule be granted.

[SIGNATURE PAGE FOLLOWS]

Dated: October 7, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

THEODORA ORINGHER

/s/ Mohini P.B. Rarrick

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th day of October, 2025, a true and correct copy of the foregoing **JOINT MOTION TO EXTEND BRIEFING SCHEDULE** was served via electronic mail on:

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